



NIXON PEABODY LLP
ATTORNEYS AT LAW

NIXONPEABODY.COM
@NIXONPEABODYLLP

Eric C. Jeffrey
Counsel
ejeffery@nixonpeabody.com

Nixon Peabody LLP
799 9th Street NW
Suite 500
Washington, DC 20001-4501
202-585-8000

February 8, 2017

VIA FIRST CLASS MAIL

Ms. Rachel Dickon
Assistant Secretary of Federal Maritime Commission
800 North Capitol St.
Room 1046
Washington, D.C. 20573

Re: Docket No. 15-11 – Ovchinnikov v. Hitrinov

Dear Ms. Dickon:

Enclosed for filing in the above-captioned matter are an original true copy and five (5) additional copies of:

1. Brief Reply to Complainants' February 2 Petition in the Guise of a Response and Request for Leave to Correct Factual Misstatements Therein

If you have any questions, please do not hesitate to contact me.

Best regards,

Eric Jeffrey

Enclosures

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

DOCKET NO. 15-11

IGOR OVCHINNIKOV, ET AL

v.

MICHAEL HITRINOV ET AL

Consolidated With

DOCKET NO. 1953(I)

KAIRAT NURGAZINOV, ET AL

v.

MICHAEL HITRINOV ET AL

**BRIEF REPLY TO COMPLAINANTS' FEBRUARY 2 PETITION
IN THE GUISE OF A RESPONSE AND REQUEST FOR
LEAVE TO CORRECT FACTUAL MISSTATEMENTS THEREIN**

Pursuant to Rule 71(b), the undersigned replies briefly to Complainants' motion (petition) in the guise of a response, filed February 2 and received yesterday. As previously explained to Counsel for Complainants, a filing that requests relief is necessarily a motion. Rule 69(b). Counsel for Complainants here request relief by asking the Commission to take action "to allow litigation of complainants' instant claims to move forward." Page 6. Complainants thus ask the Commission to review and reverse a decision of the Presiding Officer granting an extension of time. Timing of the proceeding is of course a matter within the authority and discretion of the Presiding Officer, Rule 25, and Complainants are not allowed to appeal or challenge such rulings without leave of the Presiding Officer (which they have not sought). Rule 153.

As to the purported response by claimants, one might just say *res ipsa loquitur*, or QED. The undersigned does, however, request leave pursuant to Rule 71(c) to interpose a short reply, based on the exceptional circumstances that, even though the undersigned's conduct is not at issue before the Commission, Complainants' Counsel have made an exceptional misrepresentation regarding my conduct – that I deliberately “short-served” them.¹

Attached is the Declaration of Ms. Haleh Saremi, highly experienced in litigation procedures both in courts and at the FMC, who serves as my Practice Assistant and who was the person who sent out the January 24, 2017 service copy to Complainants. As she states under penalty of perjury, the envelope was deposited in the mail on January 24, the same day that it was postmarked. Whether or why it did not allegedly arrive at Mr. Nussbaum's Office until February 1, is between he and the United States Post Office.² I will merely add that many service copies mailed by Complainants' Counsel have arrived five or more days after the mailing

¹ The undersigned has no objection to the Commission giving Complainants' technically untimely response all the consideration it deserves. Counsel could simply have asked for an extension, and I would have consented. Further, despite Counsel's misrepresentations, it is not necessary to detail why they are blocked from sending email to the undersigned. In brief, the undersigned and Counsel for Complainants mutually agreed to eschew email and block each other some time ago. As this presented logistical difficulties, at the instance of Complainants' Counsel, I reinstated their email privileges, subject to better behavior. As the Petition for Leave to Supplement shows, that better behavior was not forthcoming.

² Future service copies will, starting today, be sent by traceable mail.

date, and the copy of one filing, certified by Counsel to have been sent by express service, never arrived.³

Respectfully submitted,

A handwritten signature in cursive script, appearing to read "Eric Jeffrey", written over a horizontal line.

Eric Jeffrey

Nixon Peabody LLP

799 9th Street, N.W., Suite 500

Washington, D.C. 20001

202-585-8000

³ Although of little moment, I also correct Counsel's misrepresentation that I have ceased being paid for these proceedings on Exceptions. As explained fully in the Exceptions themselves, Nixon Peabody and I have undertaken the Exceptions (as well as the initial motion to the Presiding Officer) pursuant to our own ethical obligations and at our own expense. Accordingly, I have never asked Empire to pay one cent for any filing related to our ethical obligations. This reflects no animus toward Complainants' Counsel personally, but rather toward their conduct in violation of the ethical rules.

**FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

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I, Haleh B. Saremi, am over the age of eighteen and competent to testify in this case. I make this declaration based on my personal knowledge.

1. I am, and have been a Practice Assistant with the law firm of Nixon Peabody LLP, since 2006.
2. I am familiar and experienced with mailing of service copies of pleadings as noted on the Certificate of Service, in that they are served exactly as noted on the Certificate, whether mailed, hand-delivered, facsimile, or over-night delivery.
3. On January 24, 2017, I prepared an envelope containing a service copy in this matter, addressed and postmarked to Mr. Nussbaum and placed the envelope in mail box the same day.
4. The envelope was not pre-stamped or held for mail deposit on any other day.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Signed, Washington, D.C. February 8, 2017


Haleh B. Saremi

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing Brief Reply to Complainants' February 2 Petition in the Guise of a Response and Request for Leave to Correct Factual Misstatements Therein by US Postal Service Express Mail to the following:

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Seth M. Katz, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Date: February 8, 2017

A handwritten signature in black ink, appearing to read "Eric Jeffrey", is written over a horizontal line.

Eric Jeffrey
Counsel for Respondents